

26VECV02754 26VECV02754

County: los-angeles

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Case Number: 26VECV02754 Hearing Date: July 20, 2026 Dept: 107

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Pedram

Naeimiyan,

Plaintiff.

v.

Hamed

Tavakoli, et al.

Defendants.

Case Number Department

26VECV02754

107

COURT'S [TENTATIVE]

ORDER RE:

Demurrer without Motion to Strike

[THE
FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Sustain
with leave to amend.

I.
BACKGROUND

On May 11, 2026, Plaintiff Pedram Naeimiyan
("Plaintiff") filed a complaint against Defendants Hamed Tavakoli and Parvaneh
Ghorbani Ahmadabad ("Defendants"), alleging "[f]alse report and damaged on bussiness
and made the cost of attorney fee and bailbonds and loss of jobs[.]" (Complaint
p. 2.)

On June 4, 2026, Defendants filed a demurrer
without motion to strike. As of July 9, 2026, no opposition has been filed.

II.
REQUEST
FOR JUDICIAL NOTICE

Defendants
request the court take judicial notice of a restraining order after hearing
(order of protection). (Request for Judicial Notice p. 1.)

The court may decline to
take judicial notice of materials that are not "necessary, helpful, or
relevant." (Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison
(1998) 18 Cal.4th 739,748, fn. 6.) The
document is not necessary, helpful, or relevant to the court's ruling on the
demurrer. Defendants' request is denied.

III.
TIMELINESS

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"A person

against whom a complaint or cross-complaint has been filed may, within 30 days after service of the complaint or cross-complaint, demur to the complaint or cross-complaint.” (Code Civ. Proc., §430.40, subd. (a).)

Per Code

of Civil Procedure section 1005, subdivision (b), moving papers must be filed at least 16 court days before the set hearing, oppositions must be filed at least nine court days before the set hearing, and replies must be filed at least five court days before the set hearing.

Plaintiff filed no proof of service

showing when Plaintiff served Defendants with the summons and complaint. Thus, the court cannot determine whether Defendants timely filed the demurrer under Code of Civil Procedure section 430.40, subdivision (a).

The demurrer is timely under Code of Civil Procedure section 1005, subdivision (b).

IV.

MEET

AND CONFER

§

Code of Civil Procedure section 430.41, subdivision (a) requires parties to “meet and confer in person, by telephone, or by video conference” before the filing of a demurrer to attempt to resolve the objections raised in the demurrer. § The demurring party is required to file and serve with the demurrer a declaration either confirming that parties were unable to resolve the issues raised by the demurrer despite having met and conferred or that the opposing party failed to meet and confer with the demurring party in good faith. (Code Civ. Proc., §430.41, subd. (a)(3).)

Defendants’ counsel

submits a declaration stating they called Plaintiff to meet and confer, Plaintiff responded “if it is not clear it is not my problem,” and Plaintiff terminated the call. (Haroonian Declaration ¶¶ 1-2.) The court finds Defendants attempted to meet and confer but Plaintiff failed to meet and confer with Defendants in good faith.

V.

LEGAL

STANDARD

“A demurrer tests the pleading alone, and not the evidence or the facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (“E-Fab”) (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Id.) The court also considers “judicially noticed matters.” (Id.) A complaint must contain “[a] statement of the facts constituting the cause of action, in ordinary and concise language.” (Code Civ. Proc., § 425.10, subd. (a)(1).) A “complaint ordinarily is sufficient if it alleges ultimate rather than evidentiary facts.” (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.)

¿

A party may demur to a complaint because the complaint “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e).) A party may also demur because the complaint is uncertain. (Code Civ. Proc., § 430.10, subd. (f).) “[U]ncertain’ includes ambiguous and unintelligible.” (Code Civ. Proc., § 430.10, subd. (f).)

VI.

DISCUSSION

Defendants

argue Plaintiff’s complaint is uncertain, ambiguous, and unintelligible because it does not “state whether a valid contract exists, or whether the alleged agreement is written, oral, or implied by conduct.” (Demurrer p. 7.) Defendants argue they cannot “ascertain the nature of the claim, rendering the pleading legally insufficient.” (Demurrer p. 7.) Defendants further argue that the allegations relating to reports made to law enforcement are privileged under Civil Code section 47, subdivision (b). (Demurrer p. 7.)

Defendants

rely in part on matters outside the face of the complaint and not subject to judicial notice. (Demurrer pp. 3-4.) Demurrers test pleadings. (E-Fab, supra, 153 Cal.App.4th at p. 1315.) The court does not consider extrinsic matters.

“Demurrers

for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.

[Citations.] ‘A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.’” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695, brackets removed.) “Under our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend.” (Id., brackets removed.)¿¿

The

complaint is filed on a Judicial Council contract form complaint. But Plaintiff alleges no breach of contract cause of action. (Complaint p. 2.) Plaintiff alleges a cause of action for “False report and damaged on bussiness and made the cost of attorney fee and bailbonds and loss of jobs[.]” (Complaint p. 2.)

The only substantive factual allegations are “[f]alse report to law inforcment[.]” (Complaint p. 2.) It is unclear what cause(s) of action Plaintiff is alleging. Furthermore, the complaint is almost completely devoid of factual allegations, such that Defendants are not on notice of the complaint’s allegations and cannot reasonably respond. The court finds the complaint is uncertain.

VII.

LEAVE

TO AMEND

“Where

the defect raised by a motion to strike or by demurrer is reasonably capable of cure, ‘leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question.’” (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1146.)¿

Plaintiff

has not had an opportunity to amend the complaint. The court finds there is a reasonable possibility Plaintiff can cure the defects and grants Plaintiff leave to amend.

VIII.

CONCLUSION

For

the foregoing reasons, the demurrer is sustained. Plaintiff is granted leave to amend within thirty (30) days of this order.

Dated: July 20, 2026 _____ Hon. Eric Harmon

Judge of the Superior

Court